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HUMAN RIGHTS LAW

CHILD RIGHTS IN NIGERIA

INTRODUCTION

Children are the most vulnerable and powerless individuals in our society with the inability to protect themselves, thus needing the protection of their parents and other adults around them. Hence the need for laws to be enacted for the protection of a child against all forms of abuse, economic exploitation and social neglect. Today, child rights advocates have moved beyond the simple question of protection to also embrace an element of self-determination on the part of the child to the extent that children are granted a degree of autonomy in the enjoyment of their rights.

WHO IS A CHILD?

Before now the concept of the Nigerian child was quite unclear because Nigeria adopts a plural legal system, comprising both statutory and customary law rules, where different interpretations of a child, inter se and intra se. Thus, the concept of childhood in Nigeria is dependent on the content of an enactment or judicial interpretation on one hand, and on the other, the customary law interpretation of the area under consideration.

For instance, under **Section 30 of the Criminal Code**, a child, for conviction for unlawful carnal knowledge, is a person below the age of 12 as he is declared incapable of having carnal knowledge. Under the same Act, outside the offence of unlawful carnal knowledge, a rebuttable presumption operates to declare any person below the age of 12 years a child, thus, not criminally responsible. Under the Penal Code however, a child is a person below the age of 7, not being criminally responsible. The Labour Act deals with civil law, unlike the Criminal and Penal Codes. **Section 49(2) of the Act** declares a person a child for the purpose of employment in Nigeria if he is below the age of 14. Such a person cannot work in any industry without supervision.

On the other hand, Nigerian customary law as established in the case of **Labinjo v. Abake** declares a person a child, if he has not reached puberty. However, because customary law varies from one community to the other, who is a child largely depends on the particular custom in question. For instance, a survey of different customary laws in Nigeria shows that in some areas, childhood stops at the age of 19, while in some other areas, it extends to the age of 21.

In spite of the amorphous nature of the concept of childhood in Nigeria, as occasioned by the legal pluralism in Nigeria, the Child Rights Act has synthesized the various norms or laws on who a child in Nigeria is and proffered a definition of it. The Act has defined a child as a person below the age of 18 years and appears to have settled the matter of who a child is when it

provided that the definition of the child under Section 277 of the Act supersede all enactments relating to children, adoption, fostering, guardianship, approved institutions, remand centres, borstal institutions, and any other matter pertaining to children already provided for in other enactments.

HISTORICAL DEVELOPMENT OF CHILD'S RIGHTS

The contents of the Child's Rights Act are derived from two distinctive international instruments namely:

The African Charter on the Rights and Welfare of the Child 1989

The UN Convention on the Rights of the Child 1990

These two international instruments were ratified but not domesticated in Nigeria because lawmakers felt that these instruments did not take cognizance of the peculiar needs of Nigeria and make provisions in that respect. For instance, child betrothal, child marriage, buying or selling of children, children begging for alms, guiding beggars, and hawking goods and services on main city streets, brothels or highways which are peculiar to Nigeria, were not accommodated in the Charter and the Convention.

Nigeria therefore preferred to produce an Act that in substance contains the salient provisions of the Charter and the Convention and further contains the provisions that shall take care of the peculiar needs of Nigerians as a people. In satisfaction of this need, when the Act was enacted, it made provisions for the subject matters here disclosed, in its sections 20–23; 30(1); 30(2)(a) and 30(2)(c).

The history of child's rights and welfare in Nigeria dates back to 1943 in the Children and Young Persons Ordinance, which is known as the original legislation on child rights in Nigeria.

Today, Nigeria already has several enactments on the rights of children (including the Infants Relief Act, Children and Young Persons Laws, Compulsory Free Universal Basic Education Act, Matrimonial Causes Act, the Criminal Code Act, the Penal Code Law, and even the provisions of fundamental human rights as contained in Chapter IV of the Constitution of the Federal Republic of Nigeria 1999) that apply to the Nigerian child.

Making the Charter and the Convention part of the domestic laws will increase the enactments by two when Nigeria needed a single enactment on the rights of the child. It rather refused to make the Charter and the Convention part of the domestic laws of Nigeria but produced the Act wherein all the various laws of Nigeria mentioned above and the salient provisions of the Charter and of the Convention were reflected. It was in realization of this desire of producing a single enactment on the rights of the Nigerian child that the Act expressly stated in its section 274(1)(a) that the contents of the Act “supersede the provisions of all enactments relating to children”. The Act was therefore enacted as a domestic version of the above-mentioned international

instruments and has the added advantage of taking cognizance of the peculiarities of Nigeria and Nigerians.

Although Nigeria has not ratified and domesticated the Convention on the Rights of the Child, however, it has only signed and ratified the Convention on the Rights of the Child in the Involvement of Children in Armed Conflict and the Optional Protocol to the Convention on the Rights of the Child on the Sale of Children, Child Prostitution and Child Pornography but failed to domesticate these laws. Indicating that if there were to be an armed conflict in Nigeria, children (that is, persons under the age of 18) will be drafted into the army to fight in any armed conflict. Which almost makes a mockery of the progress made so far.

The history of Child Rights internationally can be traced way back to the early twentieth century after the First World War when there were no standards of protection for children. Then it was common for children to work alongside adults in unsanitary and unsafe conditions. Growing recognition of the injustice of the situation, propelled by a greater understanding of the developmental needs of children, led to a movement to better protect them.

In 1924, the League of Nations adopted the Geneva Declaration on the Rights of the Child, drafted by Eglantyne Jebb, the founder of the Save the Children Fund. Similarly, in 1946 the United Nations General Assembly established the International Children's Emergency Fund (UNICEF) with an emphasis on children throughout the world. Two years later in 1948, the United Nations General Assembly passed the Universal Declaration of Human Rights, in which Article 25 entitles mothers and children to special care and assistance and special protection.

CHILD'S RIGHTS UNDER THE CHILD RIGHTS ACT 2003

This important legislation on the rights and protection of the Nigerian Child came into effect on the 31st of July 2003 and was initially only applicable to the Federal Capital Territory, Abuja. Today, 25 States have enacted laws domesticating the Act while 11 other States are yet to do so. Rivers State domesticated the Act in 2010 as the Rivers State Child Rights Act 2009.

The Act retains all the rights of the child under the various legislations and goes further to provide some additional rights to the Nigerian Child.

In this Act, all the rights of a child are fundamental and it demands that in all actions concerning a child, the child's best interest, welfare and well-being must be the paramount consideration.

The Act incorporates all the laws, rights and responsibilities relating to children, as well as specifies the duties and obligations of government, parents or guardians and other authorities and bodies in relation thereto. The Act is divided into 24 parts and 11 schedules with 278 sections. The rights of a child can be discussed under the following headings: survival rights, protection rights, development rights and participation rights.

SURVIVAL RIGHTS

As earlier stated, the Act adopts all the fundamental human rights provisions in the Constitution as if they were expressly set out in the Act seriatim. In Section 4 of the Child Rights Act, the Nigerian Child's Right to Life, survival and balanced development is provided for. In this section, the right to a child's life is highlighted as the prerequisite for the realisation of all other rights.

The Act provides that every child has a right to identity by being given a name at the point of his birth while rejecting the use of tribal marks as means of identification. The Act went on to provide that the birth of a child should be registered in accordance with the Birth, Death etc. (Compulsory Registration) Act 1992. Birth registration is to be regulated by the National Population Commission.

Birth registration is not only a fundamental right in itself but also key to ensuring the fulfilment of additional rights. Section 10(2)(b) of the Births, Deaths, etc. (Compulsory Registration) Act No.69 of 1992 stipulates that registration shall be carried out free of charge, within a period of sixty days from the date of birth. A child who is not registered and given a birth certificate is deprived of the right to a name and nationality, a situation that may also lead to barriers in accessing other rights including health care, education, or social assistance. Later in life, identity documents such as a passport or National Identity Number (NIN), help protect children against early marriage, child labour, premature enlistment in the armed forces or if accused of a crime, prosecution as an adult.

Section 13 of the Child Rights Act (CRA) makes provision for the right to health and welfare of the child. It imposes this duty on all levels of government but does not provide for how this goal is to be achieved considering both the human and material resources required in Nigeria.

The Act mandates the state to take all possible measures to improve prenatal care for mothers and babies, reduce infant and child mortality, and create conditions that promote the well-being of all young children during this critical phase of their lives.

Also, by Sections 19 & 20 of the Act, every parent or guardian or person having the care and custody of a child under the age of 2 years shall ensure that the child is provided with full immunization and makes failure to do so an offence punishable with 5 thousand naira fine for a first time offender and 1-month imprisonment for a second-time offender under the Act.

However, the Act does not make any provision for the implementation of this section by providing monitoring and prosecution bodies for the implementation of this section particularly in rural areas.

By Section 15 of the CRA, the Nigerian child is required to have equal opportunity to education regardless of whether it is a boy or a girl. Thus, a child is entitled to free compulsory and universal basic education for both primary school education and junior secondary education.

The implementation of this provision has been difficult to attain due to under-funding of the child welfare system and the educational sector which does not create a favourable learning environment or even deny children access to education completely for lack of payment of fees.

PROTECTION RIGHTS

The position of the Act is very clear on the protection of the Nigerian Child. He or she must be given the utmost care and protection necessary for the well-being of the child by the child's parents, guardians, organisations or bodies legally responsible for the child – Section 20 CRA.

The Act provides for the adoption of children in Sections 125–148 by first establishing adoption services nationally and clear specifications for the mechanisms and procedure for adoption, as well as an inbuilt monitoring mechanism which has led to restrictions on interstate adoption.

Adopted children are conferred with the full rights of biological children, including inheritance rights. A child may therefore be adopted if the parents or guardian consent to adoption, or the child is abandoned, neglected or persistently abused or ill-treated or where there are compelling reasons in the interest of the child why he/she should be adopted. A court order allowing the adoption of a child may be granted to any of the following persons:

- a. A married couple, where each of them has attained the age of 25 years and they are jointly authorised by order to adopt a child; or
- b. A married person who has obtained the consent of his spouse; or
- c. A single person of 35 years old provided that the child to be adopted is of the same sex as the person adopting.

The Act prohibits all forms of corporal punishment including mental abuse/violence against children such as child marriage and all forms of child abuse within the home. It provides in Section 21 that no person under the age of 18 years is capable of contracting a valid marriage and accordingly, marriage so contracted is null and void and of no effect whatsoever; and in Section 22 that no parent, guardian, or any other person shall betroth a child to any person. By these sections, the Act criminalises both long-time practice and further provides in Section 24 that any person who makes a kin mark or causes any tattoos or skin marks to be made on a child commits an offence. Similarly, by Section 25, any person who exposes or involves a child in the use of narcotic drugs and psycho substances or exposes or involves a child in the production or trafficking of narcotic drugs or psychotropic substances is guilty of an offence.

In prohibiting child labour, the Act in Sections 27–32 provides that no child shall be subjected to any forced or exploitative labour or employed to work in forced or exploitative labour or employed to work in any capacity except where he is employed by members of his family on light work of an agricultural, horticultural or domestic character or required in any case to lift, carry or move anything heavy as likely to adversely affect his physical, mental, spiritual, moral or social development or employed as a domestic help outside his own home or family

environment. However, this prohibition does not include technical schools or similar approved institutions if the work is supervised by the appropriate authority. Further protection of children is guaranteed in the Act by prohibiting the use of children in begging alms, prostitution, and hawking of goods or services on streets or highways.

The procurement of children for the purpose of child pornography and the recruitment into any branch of the armed forces is equally prohibited. In making provisions for children deprived of their liberty, the Act enacts all principles in the Beijing Rules and prohibits the use of imprisonment for children below the age of 18 years. It abolishes the age of criminal responsibility and gives the age of 18 years to be the age below which a child cannot be subjected to the adult criminal process but can be subjected to the child justice administration process. It also prohibits the joint trial of children with adults under any circumstances and also makes provision for the separation of children from adults in detention centres in all circumstances.

In sentencing an expectant or nursing mother, the court is urged to consider a non-institutional sentence or an alternative measure to imprisonment and where imprisonment is mandatory, an expectant and nursing mother must be detained at a special mother's centre for a period not longer than the time the child is 6 years. The mother must not be imprisoned with the child under any circumstances.

Furthermore, the Act specifically provides for the establishment of a family court which possesses civil and criminal jurisdiction to entertain matters involving children and goes further to state the step-by-step procedure for handling a criminal case in the court. The Act also provides for the establishment of a specialised unit of the police force, to be known as the Special Children's Police Unit. This specialized unit is expected to be manned by police officers who are specially trained to handle criminal cases involving children.